UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF ILLINOIS
SPRINGFIELD DIVISION

JEANNE IVES, Plaintiff, v. JB PRITZKER, in his official capacity as Governor of Illinois; BERNADETTE MATTHEWS, in her official capacity as Executive Director of the Illinois State Board of Elections; and the ILLINOIS STATE BOARD OF ELECTIONS, Defendants.	)	Case No. 3:26-cv-03158

GOVERNOR PRITZKER'S MEMORANDUM OF LAW IN SUPPORT OF HIS MOTION TO DISMISS PURSUANT TO RULES 12(B)(1) AND 12(B)(6)

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INTRODUCTION

Illinois law requires state legislators to redraw the State's legislative map decennially, and in doing so to create districts that are compact, contiguous, and equal in population. In 2011, the Illinois General Assembly passed a statute that supplements those standards by requiring state legislators to consider whether it is possible to preserve communities of minority voters in areas in which it is possible for those voters to exercise electoral power. But the statute's rule is qualified in multiple ways: It applies only after legislators have satisfied the State's traditional redistricting principles (requiring legislators to "subordinate" its rule to those principles), and it expressly prohibits legislators from considering race in a manner prohibited by federal law, including the U.S. Constitution.

Plaintiff disagrees with the secondary redistricting principle established by the Act, but her complaint fails on multiple independent grounds and should be dismissed. A plaintiff invoking the federal courts' jurisdiction must allege an injury that is personalized to her, but plaintiff alleges no more than an abstract disagreement with the Act that could be shared by any Illinois voter. In particular, although the Supreme Court has held that a voter in a redistricting case has standing only to challenge the drawing of her own legislative district, plaintiff does not even identify the districts in which she resides, nor allege that Illinois legislators impermissibly considered race in drawing those districts. And if the Court were to reach the merits, it should dismiss the complaint for failure to state a claim. The Supreme Court has held that States may consider race in districting as long as race does not "predominate" over traditional districting principles, and the statute challenged here follows that rule, instructing legislators that race is "subordinate" to those principles and that, regardless, they cannot consider race in a manner prohibited by federal law. Plaintiff's constitutional and statutory claims thus fail for that reason and others, and should be dismissed.

BACKGROUND

A. Legal Background

The Illinois Constitution mandates that the General Assembly reconfigure the boundaries of the Illinois legislative (Senate) and representative (House) districts every ten years, accounting for population changes reflected in the decennial census. Ill. Const. 1970 art. IV, § 3(b). There are 59 legislative districts and 118 representative districts, and the state constitution requires that each district be "compact, contiguous, and substantially equal in population." *Id.* §§ 1, 3(a).

In 2011, the Illinois General Assembly passed the Illinois Voting Rights Act ("the Act"), which supplements the constitutional standards for drawing state legislative districts. Ill. Pub. Act No. 96-1541, § 5 (2011) (codified at 10 ILCS 120/5-1 *et seq.*). Specifically, the Act provides that, where possible—and after satisfying the requirements set out in the Constitution and applicable federal law—legislators should try to preserve communities of minority voters in areas in which those communities are of a size and cohesion that they could exert electoral power. It does so by instructing legislators that a state legislative map "shall be drawn, subject to subsection (d) of this Section, to create crossover districts, coalition districts, or influence districts." 10 ILCS 120/5-5(a). The terms "crossover district," "coalition district," and "influence district," and their definitions, are taken from the Supreme Court's opinion in *Bartlett v. Strickland*, 556 U.S. 1, 13-14 (2009). The Act applies only to the decennial redistricting of state legislative districts. *See* 10 ILCS 120/5-5(a).[1]

B. Procedural History

Plaintiff is "an Illinois resident and voter" who disagrees with the secondary redistricting principle established by the Act. Doc. 1 ("Compl.") ¶ 7. Plaintiff does not allege that she lives in a "crossover," "coalition," or "influence" district, or that she lives in a district specifically impacted by the Act. Instead, she alleges that she is "a registered voter who has voted in past

[1] https://ilga.gov/Documents/Senate/transcripts/Strans96/09600136.pdf. The Act defines a crossover district as one "where a racial minority or language minority constitutes less than a majority of the voting-age population but where this minority, at least potentially, is large enough to elect the candidate of its choice with help from voters who are members of the majority and . . . ."

elections and intends to vote" in the future; that "Illinois' legislative districts and representative districts were drawn pursuant to" the Act as a general matter; and that, as a result, "she has been placed in racially engineered districts." *Id.* ¶ 15. On May 5, plaintiff filed this complaint against JB Pritzker, in his official capacity as Governor of Illinois; Bernadette Matthews, in her official capacity as the Executive Director of the Illinois State Board of Elections; and the Illinois State Board of Elections. Count One alleges that the Act violates the Fifteenth Amendment by requiring Illinois legislators to use race to draw district lines. *Id.* ¶¶ 34-39. Count Two alleges that the Act violates section 2 of the Voting Rights Act for the same reasons. *Id.* ¶¶ 40-43. Plaintiff seeks a declaration that the Act violates the Fifteenth Amendment and section 2(a) of the Voting Rights Act, to enjoin defendants from acting pursuant to the Act, and payment of related litigation costs. *Id.* ¶¶ 44-48.

LEGAL STANDARD

Standing is a threshold requirement with the "plaintiff, as the party invoking federal jurisdiction, bear[ing] the burden of establishing" standing. *Spokeo, Inc. v. Robins*, 578 U.S. 330, 338 (2016). If a plaintiff lacks standing, the court "lacks subject matter jurisdiction and the suit must be dismissed under Rule 12(b)(1)." *Taylor v. McCament*, 875 F.3d 849, 853 (7th Cir. 2017). A defendant is entitled to dismissal under Rule 12(b)(6) where a complaint's allegations, even if true, fail to "state a claim to relief that is plausible on its face." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007). The claim for relief also must be "legally sound." *Neita v. City of Chicago*, 830 F.3d 494, 497 (7th Cir. 2016). A complaint devoid of "legal merit" is "vulnerable to dismissal under Rule 12(b)(6)." *Kirksey v. R.J. Reynolds Tobacco Co.*, 168 F.3d 1039, 1041 (7th Cir. 1999).

ARGUMENT

I. The Complaint Fails To Plausibly Allege Article III Standing.

To start, plaintiff has failed to allege Article III standing. A plaintiff invoking the federal courts' jurisdiction must allege an injury that is personalized to her, but plaintiff alleges no more than a

disagreement with the Act that could be raised by any Illinois voter. And although the Supreme Court has held that a voter in a redistricting case can challenge only the drawing of her own legislative district, plaintiff does not identify the districts in which she resides, nor allege that Illinois legislators impermissibly considered race in drawing those districts. The complaint should be dismissed on that basis.

"To ensure that the Federal Judiciary respects the proper—and properly limited—role of the courts in a democratic society, a plaintiff may not invoke federal-court jurisdiction unless she can show a personal stake in the outcome of the controversy." *Gill v. Whitford*, 585 U.S. 48, 65 (2018) (cleaned up). A plaintiff must thus allege that she has suffered an injury in fact that is traceable to the defendants and is capable of being redressed through a favorable judicial ruling. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560-61 (1992); *Sweeney v. Raoul*, 990 F.3d 555, 559 (7th Cir. 2021). The plaintiff's alleged injury must be "concrete and particularized" and "actual or imminent, not conjectural or hypothetical," to give rise to standing. *Lujan*, 504 U.S. at 560 (quotation marks omitted). At the pleading stage, the court considers the sufficiency of the complaint, which must "clearly allege facts demonstrating each element" of standing. *Larkin v. Finance System of Green Bay, Inc.*, 982 F.3d 1060, 1064 (7th Cir. 2020) (cleaned up).

II. The Complaint Fails To Plausibly Allege That The Act Facially Violates The Fifteenth Amendment.

If the Court reaches the merits, Count One should be dismissed under Rule 12(b)(6) because it fails to plausibly allege that the Act facially violates the Fifteenth Amendment. The Fifteenth Amendment provides that "[t]he right of citizens of the United States to vote shall not be denied or abridged . . . by any State on account of race, color, or previous condition of servitude." U.S. Const. amend. XV, § 1. Plaintiff alleges that the Act violates the amendment by "requir[ing] map drawers in Illinois to intentionally use race to draw district lines." Compl. ¶ 37. Plaintiff does not identify any specific district that she believes has been tainted by the use of race, or any other way in which the Act violates the Constitution as applied specifically to her. Rather, she seeks to invalidate the Act "in all its applications," *Doe v. Reed*, 561 U.S. 186, 194 (2010), and so must

satisfy the standard for facial constitutional challenges, showing that there is "no set of circumstances . . . under which" it could lawfully be applied, *United States v. Salerno*, 481 U.S. 739, 745 (1987). The complaint fails to meet that bar. The Act does not require Illinois legislators to prioritize race in drawing legislative districts, in contravention of the Constitution; instead, it tells legislators to "subordinate" race to traditional redistricting principles, 10 ILCS 120/5-5(a), and categorically prohibits legislators from considering race where doing so would violate federal law, including the U.S. Constitution. The Act does not violate the Constitution in so doing. Indeed, a three-judge court considered a claim essentially identical to plaintiff's shortly after the Act's enactment, and rejected it, explaining that the plaintiffs there had failed to allege that the Act was "unconstitutional on its face." *Radogno v. ISBE*, No. 11-cv-4884, 2011 WL 5025251, at *8 (N.D. Ill. Oct. 21, 2011).

III. The Complaint Fails To Plausibly Allege That The Act Violates Section 2 Of The Voting Rights Act.

Count Two should also be dismissed under Rule 12(b)(6) because it fails to plausibly allege that the Act violates section 2 of the Voting Rights Act. Section 2 of the Act prohibits practices—including drawing districts—that render "the political processes leading to nomination or election" "not equally open to participation by" members of a particular racial group, in that members of that group have "less opportunity than other members of the electorate to elect representatives of their choice." 52 U.S.C. § 10301(b); *see Callais*, 146 S. Ct. at 1154. Plaintiffs alleging a section 2 violation thus must provide a "comparator to be used in determining whether" members of a racial group have "less opportunity" than other voters to elect their candidates of choice. *Callais*, 146 S. Ct. at 1154. At the outset, plaintiff fails to specify which—if any—racial group she alleges has less opportunity than others under the State's current map, as well as which—if any—racial group she alleges is disadvantaged by the Act.

CONCLUSION

The complaint should be dismissed without prejudice for failure to plead Article III standing or, alternatively, dismissed with prejudice for failure to state a claim.

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Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I certify pursuant to Civil Local Rule 7.1(B)(4)(c) that this memorandum complies with the type-volume limitation. This memorandum contains 1771 words, including headings, footnotes, and quotations, and excluding the cover page, tables, and signature block.

/s/ Alex Hemmer
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